

SENATE BILL 2357

By Massey

AN ACT to amend Tennessee Code Annotated, Title 4,
Chapter 29; Title 49; Title 68 and Title 71, relative
to deaf, deaf-blind, and hard of hearing children.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 71, Chapter 4, is amended by adding
the following as a new part:

**71-4-1301. Tennessee council for research of deaf, deaf-blind, and hard of hearing
children.**

(a) There is created the Tennessee council for research of deaf, deaf-blind, and
hard of hearing children, hereinafter referred to as "the council." The council is attached
to the department of health for administrative purposes.

(b)

(1) The council consists of seventeen (17) members, appointed as
follows:

(A) Five (5) members, appointed by the governor, who are deaf,
deaf-blind, or hard of hearing;

(B) Five (5) members, appointed by the speaker of the senate,
who are parents or legal guardians of a deaf, deaf-blind, or hard of
hearing child or individuals who have experience with working with
children who are deaf, deaf-blind, or hard of hearing;

(C) One (1) member, appointed by the speaker of the senate,
who is a deaf early intervention professional for children from birth to
three (3) years of age;

(D) Four (4) members, appointed by the speaker of the house of representatives, who are deaf, deaf-blind, or hard of hearing; and

(E) Two (2) members, appointed by the speaker of the house of representatives, who are parents or legal guardians of a deaf, deaf-blind, or hard of hearing child or individuals who have experience with working with deaf, deaf-blind, or hard of hearing children.

(2) The appointing authorities:

(A) Shall ensure that members who are appointed to the council include representatives across early intervention, kindergarten through grade twelve (K-12) education, linguistics, audiology, and family advocacy; and

(B) May appoint a member pursuant to subdivision (b)(1)(B) or subdivision (b)(1)(E) who is one (1) of the following:

(i) A credentialed teacher who uses both ASL and English during instruction to deaf students;

(ii) A credentialed teacher who uses spoken English with or without visual supplements during instruction to deaf students;

(iii) A credentialed, deaf pediatric teacher of deaf students or an ASL specialist who has expertise in curriculum development and instruction of ASL and English;

(iv) A credentialed pediatric teacher who has expertise in evaluating and assessing language development in both ASL and English of deaf students;

(v) A speech language pathologist who is fluent in ASL and English with experience working with children from birth to ten (10) years of age;

(vi) A professional with a linguistic background who conducts research on language outcomes of birth to school aged-children who are deaf or hard of hearing and use ASL and English;

(vii) A community member who is knowledgeable about teaching and using both ASL and English in the education of children who are deaf, deaf-blind, or hard of hearing;

(viii) An interpreter for the deaf with national certification from the Registry of Interpreters for the Deaf (RID), achieved the highest score on the educational interpreter performance assessment, and has multiple years of experience in preschool, elementary, and secondary educational settings;

(ix) The department of health, newborn hearing screening or early hearing detection and intervention (EHDI) administrator;

(x) The coordinator of the Tennessee school for the deaf's (TSD) deaf mentor and parent advisor program;

(xi) The director of the Tennessee school for the deaf;

(xii) The executive director of a parent organization;

(xiii) The president of the Tennessee Association of the Deaf;

(xiv) The assistant commissioner of the Tennessee Early Intervention System (TEIS);

(xv) An individual representative from the department of health's legislative research department; or

(xvi) The coordinator or representative from the centers of excellence in early childhood.

(3) The members of the council must be appointed no later than August 31, 2026, and serve until the termination of the council pursuant to subsection (g).

(4) The member's appointing authority shall fill the vacancy for the unexpired term in the same manner as the original appointment.

(c) Members of the council serve without compensation but, when engaged in the conduct of their official duties, are entitled to reimbursement for travel expenses in accordance with uniform regulations promulgated by the department of finance and administration and approved by the attorney general and reporter.

(d) The commissioner of health shall call the first meeting of the council by no later than September 15, 2026.

(e) The council shall comply with the open meetings law, compiled in title 8, chapter 44, and open records law, compiled in title 10, chapter 7.

(f) Pursuant to § 8-44-108, the council may participate by electronic or other means of communication for the benefit of the public and the council in connection with any meeting authorized by law.

(g) The council ceases to exist upon completion of the council's report and recommendations submitted pursuant to § 71-4-1302(d).

71-4-1302. Duties of the Tennessee council for research of deaf, deaf-blind, and hard of hearing children.

(a) The council shall:

(1) Identify the number of deaf, deaf-blind, and hard of hearing children from birth to ten (10) years of age in this state who have an audiological diagnosis without the child's assistive listening devices worn during an assessment;

(2) Identify the race, sex, and zip code of deaf, deaf-blind, and hard of hearing children from birth to ten (10) years of age;

(3) Identify and recommend assessment tools that are designed specifically to assess the language development of deaf, deaf-blind, and hard of hearing children from birth to ten (10) years of age;

(4) Identify and recommend a fully accessible assessment practice that is compliant with the Individuals with Disabilities Education Act (20 U.S.C. § 1400 et seq.) for testing language levels of deaf, deaf-blind, and hard of hearing children in American sign language (ASL) and English;

(5) Identify and recommend qualifications needed for an individual administering an assessment tool to ensure that the individual is qualified, highly trained, fluent in ASL, fluent in English, a certified administrator of the assessment, and is a professional in early childhood or school-aged deaf, deaf-blind, or hard of hearing children;

(6) Recommend specific language criteria to be used to consistently and regularly assess the language developmental milestones of each deaf, deaf-blind, and hard of hearing child from birth to ten (10) years of age who is a resident of this state;

(7) Recommend a design and criteria for a data system that tracks each deaf, deaf-blind, or hard of hearing child's acquisition of an age-appropriate milestone from birth to ten (10) years of age who is a resident of this state;

(8) Recommend a design to identify specific, key criteria of language gaps and how to provide notice for a need of immediate intervention;

(9) Recommend protocols for reporting data results from language assessments to the parent or legal guardian of a child who receives the assessment and the state;

(10) Recommend protocols to establish an annual data reporting system; and

(11) Recommend a parent resource guide, which will be distributed in multimedia formats to families upon the identification of a child's hearing status and entrance into a program and early intervention and academic setting.

(b) The council shall act in accordance with all state and federal privacy laws.

(c) The council may solicit input from professionals who are trained in the language development and education of children who are deaf, deaf-blind, or hard of hearing on the selection of specific language developmental milestones.

(d) On or before July 1, 2029, the council shall compile a report of the council's findings and recommendations and submit the report to the commissioner of health, the governor, and the members of the general assembly. Upon the council submitting the report required in this subsection (d), the council terminates and ceases to exist.

71-4-1303. Repeal.

This part is repealed on July 1, 2029.

SECTION 2. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.